

Pilot Order & Service Terms

Document: FC Pilot Order & Service Terms

Version: V2.0

Effective Date: [EFFECTIVE DATE]

1. Agreement Structure and Formation

1.1 These Terms apply to the custom NFC products, digital services and cross-border fulfillment services identified in the applicable Order Summary.

1.2 The Agreement becomes effective when Customer's authorized representative reviews the Order Summary, affirmatively accepts these Terms and the DPA through an unchecked checkbox, and completes payment. FC's subsequent order confirmation records the order number, payment and fulfillment arrangements.

1.3 Before production begins, FC may cancel an order if FC cannot lawfully or reasonably perform because of sanctions, export controls, product safety, technical infeasibility, an obvious pricing error, inability to complete lawful delivery, or another reasonable compliance ground. FC will return all amounts paid to the original payment method within five business days.

1.4 The "Agreement" consists of the Order Summary, these Terms, the DPA that applies by default, the approved Product Specification, the approved Artwork, and written changes confirmed by the parties. The DPA controls personal-data matters. Otherwise, the order of precedence is: later signed change; Order Summary; Product Specification; Approved Artwork; these Terms.

1.5 If the Product Specification or Artwork is complete before checkout, the Order Summary must identify its version and Customer accepts it at checkout. If not complete, it must be marked "Pending Separate Approval." Customer's later separate electronic approval automatically incorporates the approved version into the Agreement at the time of approval. FC may not begin mass production before that approval.

1.6 Additional, different or conflicting terms in Customer purchase orders or other documents do not apply unless expressly accepted in writing by an authorized FC representative.

2. Products and Standard Digital Services

2.1 FC will manufacture the Products in accordance with the Order Summary, Product Specification and Approved Artwork, and will provide the standard digital services listed in the Order Summary.

2.2 Standard digital services may include a branded mobile experience, consumer activation, product-use confirmation, self-reported inventory or remaining-supply status, product feedback and preferences, replenishment-intent interactions, reminders, flavor or quantity choices, reorder entry points, Dashboard, analytics and reports. Customer purchases only the Included Features expressly listed in the Order Summary.

2.3 During the Digital Service Term, FC may reasonably update interfaces, workflows and technical implementation without materially reducing the Included Features. Any new feature, integration, individual-level writeback or expanded processing scope requires confirmation by Customer's authorized representative through a written or platform-based Feature/Data Scope Change Confirmation and, where necessary, an updated Order Summary and DPA scope.

2.4 Unless expressly included in the Order Summary, the Services exclude custom software development, unlisted deep integrations, paid advertising, consumer support, Customer warehouse insertion, continuing manual content operations and third-party platform charges.

2.5 Customer may distribute the Products as no-separate-charge marketing items with Customer products. Customer is responsible for its product sales, insertion and distribution, offer fulfillment and consumer support.

3. Customer Materials, Specifications and Approval

3.1 Customer will provide the trademarks, logos, artwork, text, URLs, data and other materials required for production and the digital services. Customer represents that it has the necessary rights and that such materials are accurate, lawful and non-infringing.

3.2 Each order must reference an approved Product Specification and Approved Artwork record identifying at least dimensions, materials, thickness, magnet construction, NFC configuration, printing, packaging, production tolerances, test methods, version and approval time.

3.3 Customer must review and approve product text, artwork, colors, specifications, URLs, NFC destinations and consumer-facing content. Customer's electronic approval is Final Approval.

3.4 FC is responsible for manufacturing and configuration in accordance with the approved versions. Customer is responsible for spelling, text, logos, claims and links reasonably visible in an approved version. FC remains responsible for departures from the approved Product Specification or Artwork.

3.5 Changes after Final Approval require FC's written consent and may change price and schedule.

4. Price, Payment and Taxes

4.1 Customer will pay the Total Due shown in the Order Summary at checkout. FC has no obligation to begin production or Services if payment fails.

4.2 Singapore GST, U.S. sales tax, use tax, import-related charges and exemption documentation will be handled as stated in the Order Summary and applicable law. FC will apply applicable Singapore GST rules to goods delivered directly from one place outside Singapore to another place outside Singapore. GST treatment of digital services depends on their actual nature and applicable international-services rules.

4.3 FC's obligation to collect U.S. state sales tax depends on nexus and applicable taxability rules in the delivery state. Customer claiming an exemption must provide valid documentation before payment. Customer remains responsible for use tax that FC is not legally required to collect.

4.4 The Door-to-Door Fulfillment Fee includes the transportation, export and import customs handling, applicable import-related charges and final-mile delivery listed in the Order Summary. Under ordinary circumstances, no additional standard import charge is due from Customer upon receipt.

4.5 Unless disclosed otherwise in the Order Summary, FC arranges import customs handling through its logistics providers. Customer is not the intended Importer of Record and ordinarily need not appoint a broker or provide an EIN; however, Customer must provide lawfully required business or delivery information reasonably requested by law, customs or a carrier.

4.6 Customer may not deduct or withhold payment except where required by law. If withholding is mandatory, Customer will notify FC and provide official evidence. Taxes based on FC's net income remain FC's responsibility.

4.7 The Fulfillment Fee will not change because of ordinary freight, fuel, handling or import-cost fluctuations. Notwithstanding Section 6.1, if a new law, tariff measure, governmental restriction or mandatory classification change after order formation creates a material new government charge on an unshipped portion, FC will notify Customer before shipment. The parties may agree to an adjustment. If they do not, either party may cancel the affected unshipped portion. FC may retain amounts properly applied to completed Products, completed Services and non-cancellable commitments and will refund the balance without double recovery.

5. Production, Delivery, Title and Risk

5.1 Production and estimated transit periods are stated in the Order Summary. The schedule extends for Customer delay in Final Approval, Product Specification approval, materials or required cooperation.

5.2 Transit times are good-faith estimates, not guaranteed arrival dates. Customs inspections, carrier changes, weather, governmental action and events outside FC's reasonable control are not breaches, provided FC reasonably monitors and provides available information.

5.3 FC may use logistics providers for export, international transportation, import customs handling and final-mile delivery. Customer does not contract separately with those providers.

5.4 Customer must provide accurate delivery information and ensure that the address can receive commercial packages. Customer bears additional costs caused by incorrect information, refusal, redirection or failure to provide lawfully required cooperation.

5.5 Title and risk of transit loss or damage pass to Customer when the Products are validly signed for or delivered to the designated address or authorized receiving area.

6. Cancellation and Changes

6.1 Except for cancellation under Section 4.7, Customer may not cancel custom Products after production begins and payments are non-refundable, except where FC's material breach defeats the purpose of the Agreement.

6.2 Before production begins, FC may deduct payment-processing charges, completed design or digital-service work, non-returnable materials and incurred third-party costs, and will refund the balance.

6.3 Changes to quantity, design, Product Specification, features, data scope, URLs or delivery address take effect only when accepted by FC in writing and may change price and schedule.

7. Inspection, Defects and Remedies

7.1 Customer must report visible transit damage, shortages or incorrect delivery within five business days and other visible nonconformities discoverable through reasonable incoming inspection within ten business days after Delivery.

7.2 Latent manufacturing or NFC defects must be reported promptly after discovery and no later than expiration of the applicable warranty period.

7.3 Customer will provide photographs, packaging, labels, lot information, test devices and necessary samples. For a verified failure to materially comply with the Product Specification or Approved Artwork, FC may replace, remake, refund or credit the affected quantity. Each verified defect is eligible for a remedy. FC will expand inspection and address an affected lot when the batch threshold in the Product Specification is reached.

7.4 Variations within tolerance, unsupported devices, disabled NFC settings, thick phone cases, metal or magnetic interference, misuse, modification, improper storage, Customer Materials and third-party system problems are not defects.

8. Limited Warranty and Results Boundaries

8.1 During the warranty period stated in the Product Specification or Order Summary, FC warrants that the Products will materially conform to the approved specifications under normal storage and approved use and will be free of material defects in workmanship.

8.2 FC does not warrant readability on every phone, case, metal or magnetic environment, or that consumers will retain, display or use the Products.

8.3 FC does not guarantee TAP rate, conversion, repeat purchase, revenue, profit, statistical significance or return on investment. Use, remaining supply, inventory and replenishment information may be consumer-reported or estimated. FC does not independently verify actual use, consumption or household inventory.

8.4 Click-attributed, Coupon-attributed, Assisted or other Attributed Orders/Revenue are generated under agreed attribution methods and do not necessarily represent incremental sales caused by FC. A result may be described as Incremental only under a pre-established experiment design, Treatment/Holdout assignment and measurement window.

8.5 FC will generate reports in all material respects according to agreed event definitions, attribution rules and available data and will reasonably correct confirmed material reporting errors.

8.6 Except for the express warranties in this Section, FC disclaims other express or implied warranties to the maximum extent permitted by law.

9. Product Safety and Compliance

9.1 FC is responsible for materials, construction, workmanship, NFC encoding, approved warnings and manufacturing to the Product Specification within FC's control.

9.2 Customer is responsible for its products, claims, offers, promotions, consumer distribution and use cases. Customer may not market the Products as toys,

children's products, food, medical devices or certified products without approval and may not remove required warnings.

9.3 Each party will promptly notify the other of a material safety issue and cooperate in suspension, investigation, correction or recall. Costs are allocated to the extent caused by each party. Mandatory safety duties are not excluded.

10. Digital Service Term, Suspension and Termination

10.1 The Digital Service Term is stated in the Order Summary and begins on the platform-recorded Digital Activation Date. There is no automatic renewal. Renewal requires affirmative written or platform confirmation by Customer's authorized representative.

10.2 After expiration, Customer has 30 days to request the agreed data export. During that period, FC will maintain the last approved page or redirect to a lawful Customer URL. If not renewed, FC may then discontinue Dashboard, content updates, analytics and hosting or place the destination in a neutral inactive state, but will not redirect to unrelated advertising.

10.3 Customer does not acquire FC domains, shared URLs, routing architecture, platform accounts, source code or backend systems. Exit arrangements for Customer-owned domains or CNAMEs are stated in the Order Summary.

10.4 FC may suspend affected functions for legal requirements, security threats, malicious use, unlawful content, unauthorized processing or material risk to the Services or third parties. Where reasonably practicable, FC will notify Customer, explain the basis and restore the function after the risk is removed.

10.5 Either party may terminate affected digital services for a material breach not cured within 15 business days after written notice. For a continuing material failure of an FC-controlled core digital function that is not timely cured, Customer's principal Pilot remedy is a reasonable extension of the Digital Service Term for the affected period, without limiting remedies that cannot lawfully be limited.

10.6 The Services may depend on networks, hosting, browsers, operating systems, domains, Shopify, Klaviyo and Customer systems. FC is not responsible for failures outside its reasonable control, but remains responsible for its own URLs, encoding, configuration, code, permissions, operational errors and managed subcontractors.

11. Data and Privacy

11.1 The DPA applies by default to a standard FC Pilot. It may be marked inapplicable only where the Order Summary expressly approves an Anonymized Deployment Exception and the deployment has no identity mapping, order binding, persistent personal/device identifier, retention of identifiable IP data or individual-level output.

11.2 Consumer Interaction Data includes activation, TAP, product-use status, self-reported inventory or remaining supply, preferences, satisfaction, replenishment intent, reminders, reorder actions, timestamps and technical events. Such data does not necessarily prove actual use or household inventory.

11.3 Customer is responsible for consumer privacy notices, Notice at Collection, cookie/tracking disclosures, lawful bases and required consent or opt-out mechanisms. FC will provide processing information and reasonable technical cooperation.

11.4 Without a specific written addendum and required controls, Customer may not direct FC to process health conditions, symptoms, diagnoses, prescription drugs, dosage, health goals, biometrics, precise location, payment-card data, government identifiers or other sensitive data. FC records consumption rhythm, not health reason.

11.5 Children's and family-food experiences are parent-facing by default and may not require a child under 13 to create an account or submit identifiable information.

11.6 Dashboard output is aggregated or segmented by default. Individual-level writeback is permitted only with lawful identity association, required notice/consent and express enablement in the Order Summary. FC will not link identities across brands or generate health labels.

12. Intellectual Property and Confidentiality

12.1 Customer retains Customer Materials and Customer Data and licenses them to FC only for performance. FC retains its software, NFC methods, templates, workflows, analytics methods, manufacturing know-how, generic components and other Background IP.

12.2 After full payment, Customer may use delivered custom designs and Products for the approved program but does not acquire FC's platform, source code, domains or backend systems.

12.3 FC will not publicly use Customer's name, logo, campaign data or results without prior written consent.

12.4 Each party will reasonably protect the other's nonpublic commercial, technical, pricing, customer and security information. Trade secrets remain protected while qualifying as trade secrets; other confidentiality obligations survive for three years after termination.

13. Indemnification and Liability

13.1 Customer will indemnify FC against third-party claims to the extent caused by Customer Materials, Customer products or claims, offers or promotions, consumer distribution, unlawful data instructions, unauthorized modifications or out-of-scope use.

13.2 FC will indemnify Customer against third-party claims to the extent caused by infringement in original FC-created deliverables, bodily injury or tangible property damage caused by an FC-controlled manufacturing defect, or FC's material breach of the DPA.

13.3 The indemnified party must provide reasonably prompt notice and cooperation. Delay reduces obligations only to the extent it materially prejudices the defense. The indemnifying party may control defense and settlement but may not, without consent not to be unreasonably withheld, settle on terms requiring the indemnified party to admit liability, pay money, assume continuing obligations or restrict its business.

13.4 Neither party is liable for indirect, incidental, special, punitive or consequential damages, or lost profits, revenue, goodwill, opportunity or business interruption, except where such limitation is prohibited.

13.5 Except for fraud, willful misconduct, gross negligence, death or personal injury, Customer payment obligations and liability that cannot be limited, FC's aggregate liability will not exceed the amount actually paid by Customer under the Order Summary giving rise to the claim.

14. Force Majeure

14.1 Neither party is liable for delay caused by events beyond reasonable control. The affected party will provide prompt notice and use reasonable mitigation.

14.2 If force majeure prevents material performance for 60 consecutive days, either party may terminate the unperformed portion. FC will refund the corresponding unperformed amount, less completed work, completed Products and non-cancellable commitments.

15. Governing Law and Disputes

15.1 The Agreement and related non-contractual obligations are governed by Singapore law, excluding conflict-of-laws rules. The United Nations Convention on Contracts for the International Sale of Goods does not apply.

15.2 Authorized business executives will first attempt good-faith resolution for 30 days. Unresolved disputes are subject to the exclusive jurisdiction of the Singapore courts.

15.3 Mandatory U.S. delivery-state product-safety, import, tax and privacy laws remain applicable to their respective subject matter.

16. General

16.1 The parties are independent contractors. No partnership, employment, general agency, franchise or exclusivity is created. No non-party may enforce the Agreement under Singapore's Contracts (Rights of Third Parties) Act 2001.

16.2 **Notices.** Customer notices go to the FC Notice Email in the Order Summary; FC notices go to Customer's checkout Business Email. An email without a bounce is deemed received one business day after sending. Termination, indemnity and material-breach notices must also use a method providing evidence of delivery.

16.3 **Assignment.** Customer may not assign without FC's consent, except in a merger, reorganization or sale of substantially all assets to a successor that assumes all obligations and is not an FC competitor. FC may assign to an affiliate or business successor.

16.4 **Waiver.** Failure or delay in enforcing a right is not a waiver. A single waiver is not continuing.

16.5 Severability and Entire Agreement. An invalid term will be adjusted only to the minimum extent necessary to preserve its commercial purpose; the remainder continues. The Agreement is the entire agreement concerning the order and may be amended only by authorized written or platform confirmation.

16.6 Survival. Payment, data protection, intellectual property, confidentiality, indemnification, liability, disputes and provisions that by nature should survive remain effective after expiration or termination.

16.7 Language. The external contract version will be English. A Chinese translation is for reference only. If inconsistent, the _____ accepted by Customer controls.

16.8 Electronic Acceptance. No acceptance box may be pre-checked. Before payment, the platform must prominently link downloadable and storable copies of the Order Summary, Terms and DPA and, where finalized before checkout, the applicable Product Specification and Approved Artwork. Any Product Specification or Artwork completed after checkout becomes part of the Agreement upon Customer's separate electronic approval and must be approved before mass production. FC may retain entity and signer information, versions, order snapshots, timestamps, IP, device/browser information, payment, approvals, Digital Activation Date and confirmation emails as evidence of formation and performance.